

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

TANYA HLADYSH AND PETER
HLADYSH

Plaintiffs

- and -

CANADA SAFEWAY LIMITED

Defendant

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)
) *Ross W. Murray, for the Plaintiffs*
)
)
)

)
) *Gregory Birston & Chantal Brochu, for the*
) Defendant
)
)
)

) **HEARD:** April 5 & 6, 2004,
) in Thunder Bay, Ontario

Pierce J.

Reasons For Judgment

Introduction

[1] This is a slip and fall case. In these reasons, I will refer to the plaintiff, Tanya Hladysh, as the plaintiff. The plaintiff alleges she slipped on a grape in the defendant's produce department, and badly fractured her wrist. The sole issue in this trial is liability.

[2] The parties agree that if the defendant is liable, general and *Family Law Act* damages will total \$55,000; the O.H.I.P. subrogated interest, \$2,116.25; special damages, \$1,218.51; with prejudgment interest on general damages at \$7,097.26; and interest on special damages of \$78.65. The total award, exclusive of costs, if liability is found, is therefore agreed to be \$65,510.67.

[3] The parties agree that the Tanya Hladysh fell in the produce department of the Canada Safeway store located on Arthur Street in Thunder Bay on September 8, 2001. The time of her fall is in issue. This is important because the defendant's records indicate the department was swept about the time of her fall. Was it immediately before or just after?

[4] The evidence differs as to the location of the plaintiff's fall within the produce department. This is significant because of proximity to the grape bin.

[5] The plaintiff's footwear is also in issue. Mrs. Hladysh, who was not quite 73 at the date of her fall, and her daughter, who accompanied her shopping that day, testified the plaintiff was wearing sturdy black Nike lace-up running shoes at the time. The defence witnesses, employed by Safeway, testified she was wearing white slip-on shoes with a worn, slanting sole.

[6] The cause of the plaintiff's fall is in issue. The plaintiff and her daughter testified that Mrs. Hladysh slipped on a single grape, thus causing the plaintiff's injury. The defence argues she did not slip on a grape on the floor, but even if she did, the defendant did all that was reasonable to maintain the floor in the produce department free of hazard.

The Evidence

The Time of the Fall

[7] The plaintiff's theory is that she slipped on a grape some time after her arrival at the store at 10:30 a.m. and before the produce department was swept, clocked at 10:59 a.m. The defendant's position is that she fell shortly after the floor was swept.

[8] Mrs. Hladysh testified she called her daughter, Mrs. Poluyko, on September 8, 2001 to invite her to go grocery shopping, something they often did together. The plaintiff stated that she *arrived* at her daughter's at 10:20 a.m. and entered the defendant's store, a 5-minute drive away, after 10:30 a.m. However, she did not make note of the time.

[9] Mrs. Poluyko testified her mother *called* at 10:20 a.m. She looked at the clock at the time of this call. Her evidence was that her mother came for her within 10 minutes, and they arrived at Safeway at approximately 10:30 a.m. Neither woman was wearing a watch that day.

[10] Both estimated they spent about 4 or 5 minutes in the floral department. They had a clear view into the adjacent produce department. Mrs. Poluyko testified there was one other shopper in the middle of the department, but no staff sweeping or mopping.

[11] The accident report filled out by Mrs. Poluyko, dated and signed by the plaintiff on October 1, 2001 places the time of the fall at 10:30 a.m. In cross-examination, Mrs. Poluyko agreed the fall could have occurred about 10:40 a.m.

[12] The defendant's produce clerk that day was Charlene Slobodian. She testified that she *finished* sweeping the produce area about 10:59 a.m., being the time that the sweeping log maintained by the department was punched in and initialled by her. Her evidence was that sweeping started from the back room that services the department, runs around the perimeter of the department, then around the bins holding produce, and into the back room, where debris is disposed of. A complete sweep of the floor takes about 10 minutes. She testified that no one had fallen before or during the time when the department was being swept.

[13] Upon the plaintiff falling, her daughter went to her, then immediately sought help from the check-out clerk at the front of the store. In answer to the call for help, Ms. Karasiewicz, the "person in charge," employed by the defendant, came to the produce department immediately. She called the store manager, Mr. Ginn, who also arrived at the scene in less than a minute.

[14] The plaintiff testified that she sat on the floor "a good few minutes" before she collected herself after the fall and realized her wrist was hurt. She stated she called her daughter, who got the manager, but he did not arrive for 5 minutes at least. She recalls a female staff person arriving behind him. She testified it was at least 20 minutes, if not more, from the time she fell until she left the store via the front doors.

[15] This evidence is not corroborated by the plaintiff's daughter, who testified she saw her mother fall, and went directly to her, then immediately sought help from the check-out clerk at the front of the store. Ms. Karasiewicz was paged and came to the produce department right away, then called the manager. Mr. Ginn says, and Mrs. Poluyko agrees, that he arrived at the scene in less than a minute. He took notes at the time, and prepared a report based on those notes within half an hour that day. His report places the time of the fall at 11 a.m.

[16] The plaintiff's daughter estimated it was 10-12 minutes from the time Mr. Ginn arrived until the plaintiff left for the hospital. Mr. Ginn's evidence was this interval was not more than 5 minutes. It is common ground there was some discussion about calling an ambulance and how the fall occurred during this time.

[17] After sweeping, the produce clerk's next function in the back room was to load the produce dolly with items that were needed for stocking the area, a process that takes 10 – 15 minutes. When Ms. Slobodian left the back room for the floor of the produce department, she did not see anyone who had fallen. She did see the store manager, John Ginn, and Shirley Karasiewicz, looking at the floor in the produce department. They told her that someone had slipped on a grape in the department.

[18] The emergency department records at the hospital confirm the plaintiff was seen there between 11:15 – 11:16 a.m. that day. The plaintiff testified the trip to the hospital took well over 10 minutes, and then she had to wait in line behind 3 other patients in the emergency department before she was seen. However, in cross-examination, the plaintiff stated it took less than 10 minutes to get to the hospital. Mrs. Poluyko, who drove the plaintiff, estimated it was "near 10 minutes" to get to the hospital, although neither she nor her mother checked a clock.

[19] Both the plaintiff and her daughter agreed the produce floor was clean and dry at the time of the fall. The defence produced Polaroid photographs of the area taken immediately after the plaintiff left the store for the hospital; these pictures confirm that evidence. Shirley Karasiewicz retrieved the store camera from the office and took the photographs of the area immediately adjacent to the location of the fall. She then logged the pictures at 11:15 a.m. that day.

[20] I conclude that the plaintiff and her daughter arrived at the defendant's store somewhat later than they believe, and that the plaintiff fell at a time shortly before 11 a.m., but after the produce department had been swept. This is the only possible explanation for their not seeing Charlene Slobodian sweep the area, or for Ms. Slobodian not observing the plaintiff on the floor after she fell. It is consistent with Ms. Slobodian loading her cart in the back room, and returning to the produce department, to find Ms. Karasiewicz and Mr. Ginn there. It is also consistent with the time the plaintiff arrived at the hospital.

The Place of the Fall

[21] The produce department is bounded on the right by a fixed divider running the width of the store, stocked with product, and on the left by the end wall of the building. In the middle area are two parallel rows of freestanding bins or "bunks" containing fruits or vegetables. These may be configured to hold 4 or 6 types of produce, and can be adjusted as to size. They are affixed to the floor on a semi-permanent basis. A customer may approach these bunks on all sides.

[22] The plaintiff's evidence is that she fell 1 – 2 feet past the bin where grapes were offered for sale. If mats been in place around the grape bin that day as they had previously been, she would have fallen 2 or 3 inches past the edge of the mats. She placed the grape bin at 6 – 7 yards past the floral department. She testified grapes were in the second freestanding bin from the floral department, on the left. She recalled the bananas were on the right, also in a freestanding bunk. Her evidence was that she fell at the edge of the banana bin.

[23] Mrs. Poluyko testified the grape bin was about 40 feet from the floral department. She remembered apples being in the second bunk as one looks toward the back of the store, and grapes in the third bunk. Her recollection of the banana bin is vague. She conceded she could not identify exactly where her mother fell.

[24] The store manager, Mr. Ginn, testified the grapes are usually placed in the first bunk in the left row of bunks, as one walks into the produce department, given there is usually less traffic there. In other words, the grapes are at the front of the department when entering from the front of the store, and nearest the end wall to the left.

[25] Ginn stated the grape bin was not adjacent to the area where the plaintiff fell. When he came upon her, she was on the floor beside the banana bin, being the third bunk of produce on the right hand side, on the side nearest the back of the department.

[26] The produce clerk, Ms. Slobodian, testified the grapes were located in the first bunk on the left upon entering the department, immediately adjacent to the floral department. Ms. Karasiewicz's evidence was to the same effect. She also identified the location of the plaintiff's fall as being on the far side of the banana bin, as one enters from the front of the store. This is a bunk in the right aisle of bunks, 2 bins beyond where the grapes are located.

[27] I find that the plaintiff was mistaken as to the location of her fall. I accept Mrs. Hladysh fell on the back side the banana bin, at least 2 bunks away from the grapes, and across the aisle. Given the shock of injury, this is not surprising, but the distance from the grape bin is a relevant consideration in determining whether the plaintiff slipped on a stray grape.

The Plaintiff's Footwear

[28] The evidence is diametrically opposed as to the footwear the plaintiff was wearing the day of her fall: Mrs. Hladysh's evidence is she was wearing black Nike lace-ups with orthotic inserts. These shoes, filed in evidence, are sturdy, close-fitting, with an athletic sole that is not worn. She testified she double knots the laces so they won't untie, given that she does a lot of walking. She emphatically denied wearing slip-on shoes that day, saying she doesn't own white shoes. She is not likely to be mistaken about such a fact.

[29] The store manager and Ms. Karasiewicz both testified that the plaintiff was wearing white slip-ons at the time of her fall. Karasiewicz stated she examined the bottom of the plaintiff's shoes and noted they had a smooth, slanting sole. Her note, made after the accident, is in evidence, as is a similar note in Mr. Ginn's report made shortly after the accident.

[30] While Mr. Ginn and Ms. Karasiewicz *believe* this was the plaintiff's footwear, I accept the plaintiff's evidence for these reasons: it was her daughter, Mrs. Poluyko, who wore pale grey slip-on shoes that day, similar to those described by the defence. Mrs. Poluyko filled out the accident report that was signed by the plaintiff on October 1, 2001 stating that her mother wore Rockport shoes that day. She acknowledged this was an error, but said that her mother wore sturdy tie-up good quality shoes. Finally, a person who is accustomed to wearing orthotic inserts in her shoes is unlikely to wear shoes that don't accommodate the inserts. Thus, it is unlikely that the plaintiff wore slip-ons that day. The likelihood is that the store personnel, looking for an explanation for the fall, confused the footwear of the two women.

The Cause of the Plaintiff's Fall

[31] Mrs. Hladysh believes she slipped on a single grape that had rolled away from the grape bin. She testified her daughter, Mrs. Poluyko, went *ahead* of her into the produce department. She said that after her fall, while she was still sitting on the floor, she noticed 3 droplets of green liquid within an area of about an inch. These droplets were not smeared. There was no evidence of grape skin or pulp in that area. The droplets were not readily visible to Mrs. Poluyko, despite the area being well lit; it was only when her mother pointed them out to her that they were visible.

[32] Mrs. Poluyko testified she *followed* her mother into the produce department, and from that vantage point saw her mother's feet go out from under her, and saw a grape flying away. This tiny discrepancy in their evidence is troubling. If the plaintiff followed her daughter into the produce department, Mrs. Poluyko could not have seen a grape fly through the air.

[33] Both women testified that Mrs. Poluyko went to the apple bin. The evidence of Ms. Karasiewicz established that apples were located in the second bunk on the right looking toward the rear of the produce department. It also placed the plaintiff as having fallen on the back side of the banana bin, beside the centre of the bin, when one looks toward the back of the department. In other words, there is at least a banana bin between where Mrs. Poluyko was located and where the plaintiff fell. Depending on what side of the apple bin Mrs. Poluyko stood, there may also have been that bin in the way.

[34] It is unlikely that Mrs. Poluyko had a clear view when her mother fell. It is unlikely she could have seen a grape going flying, if indeed there was one.

[35] Understandably, neither the plaintiff nor her daughter examined the soles of the plaintiff's shoes. However, Mr. Ginn did look at the bottom of the plaintiff's shoes, and found them to be dry and free of any residue. Ms. Karasiewicz also found the soles free of debris. Neither Ginn nor Karasiewicz remembered the plaintiff pointing out the droplets on the floor. Although they were looking for evidence of a grape, they didn't see any.

[36] Ginn testified he asked Poluyko, "Where's the grape?" A search of the location on all sides of the bin and under the adjacent rack was conducted by Ginn and Karasiewicz, but no evidence of a grape could be found. When Ms. Slobodian joined them a little later, she was unable to locate evidence of a grape. She noted that the grape bin, some distance away, had no grapes on the floor. I find that there were no mats placed in the area of the grape bin that day.

[37] If Mrs. Hladysh has slipped on a grape, one would have expected the drops of juice to smear. Perhaps there would have been a skin or pulp residue in the area, either on the floor or on the shoes. The plaintiff and her daughter concede the floor was dry and free of debris. I accept that a search in the area of the fall, including moving a rack adjacent to the area, did not turn up any grape.

Discussion

[38] The burden is on the plaintiff to establish that, on a balance of probabilities, her injury was caused as a result of a breach of the defendant's duty under the *Occupier's Liability Act*. Section 3(1) of the Act provides:

"On occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the

property brought on the premises by those persons are reasonably safe while on the premises.”

The occupier is not a guarantor of the safety of the visitor. In speaking of the occupier’s duty, the Court of Appeal in *Waldick v. Malcolm* 70 O.R. (2d) 717; [1989] O.J. No. 1970 at page 5 observed:

“...The duty is not absolute and occupiers are not insurers liable for any damages suffered by persons entering their premises. Their responsibility is only to take “such care as in all the circumstances of the case is reasonable....”

[39] In my view, the plaintiff has not proved, on a balance of probabilities, that she slipped on a grape in the defendant’s store, causing her injury. But even if she had, I am persuaded that the defendant did what was reasonable in the circumstances to make the premises reasonably safe.

[40] The evidence is that the defendant had written policies addressing the need for its stores to be swept every 2 hours. The evidence in this case, which was not challenged, was that the produce department was swept hourly, as well as at the beginning of a staff person’s shift, and on an as needed basis. At the time the plaintiff fell, the floor was clean and dry.

[41] The need for regular sweeping was reinforced by the requirement that each sweep would be punched in and initialled by the sweeper. These logs were checked by management on a regular basis. They are sent to the defendant’s claims department.

[42] The staff were required to study and complete monthly safety programs. The departments received a walk-through inspection by the store manager and the department heads many times a day. Posters throughout the store emphasize that staff, for safety reasons, are not to “pass it by,” but should “pick it up.” The defence witnesses understood these requirements are for the safety of staff as well as the customers.

[43] In addition, non-skid flooring was installed in the produce department.

[44] It is difficult to imagine what additional steps the defendant might take in order to keep the premises safe.

[45] For all of the foregoing reasons, the case is dismissed. If the parties cannot agree on costs, an appointment may be obtained from the Trial Coordinator to argue same.

Pierce J.

Released: April 23, 2004

COURT FILE NO.: 02-0566

DATE: 2004-04-23

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B E T W E E N:

TANYA HLADYSH AND PETER HLADYSH

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REASONS FOR JUDGMENT

Pierce J.

Released: April 23, 2004

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